

The Court notes that an annual accounting is due. The Court sets a hearing on December 18, 2026, at 9:00 a.m., in Department 6 regarding the same. Conservator shall file an annual accounting in advance of the continued court date.

7. PR0000353 In the Matter of Sylvia De Mieur

No appearances are required. The conservatorship of the person and estate shall continue. The conservatorship still appears to be warranted. The Conservator is acting in the best interests of the Conservatee regarding the Conservatee's placement and quality of care, including physical and mental treatment. The next biennial review is set for September 15, 2028, at 9:00 a.m., in Department 6. It is alleged the estate has sufficient funds to pay for the investigative fee. Quest investigations shall submit their fee request. Absent objection, the Court shall order the estate to pay the investigation fee.

The Court notes that an annual accounting is due. The Court sets a hearing on December 18, 2026, at 9:00 a.m., in Department 6 regarding the same. Conservator shall file an annual accounting in advance of the continued court date.

8. PR0000786 In the Matter of Gary Spencer

No appearances are required. The petition to confirm the existence of the Spencer Trust is granted as prayed and the Nevada County Public Guardian is appointed as successor trustee. A proposed order has been submitted. The Court appreciates the thorough and thoughtful briefing of the Public Guardian.

9. PR0000809 In the Matter of Griffin Wayne Johnson Murphy

Appearances are required. Allyson Siobhan Johnson shall show cause why she should not be sanctioned for failing to file an inventory and appraisal as ordered by this Court on November 10, 2025.

10. PR0000844 In the Matter of Janet Schaper

No appearances are required. Petitioner Janet Schaper's April 10, 2026, petition to enforce court-approved stipulation is denied.

Code of Civil Procedure section 664.6 permits a court to retain jurisdiction to enforce the settlement. However, the court's power is limited in that it cannot resolve new issues that have arisen after settlement. *See Howeth v. Coffelt* (2017) 18 Cal.App.5th 126, 134. Petitioner requests the Court in her original petition to require transfer of the remaining Shaper Living Trust funds to the Michael Schaper Special Needs Trust. She also requests the Court to grant other relief, *i.e.*, to issue a temporary stay of appointment of the trustee of a special needs trust, order an accounting from 2024 to present related to the present trust, characterize certain monies and property as trust property, require bond for the proposed trustee of the special needs trust, and order that the document creating the special needs trust be reviewed and approved by this Court. In her September 9, 2026 Response, Petitioner renews the request to transfer the remaining funds (after administration expenses) and then requests other relief, *i.e.*, to compel Respondent to file an instrument under which Andrew Harker is serving.

Based on the current record presented, including the September 8, 2026 Status Report of Respondent, the Court is satisfied that Respondent has appropriately distributed all required funds and appropriately can retain the requested reserve to pay any final administration fees, including, without limitation: taxes, final administration expenses and fees, fees associated with preparation and approval of an accounting, and legal fees associated with final administration including litigation related thereto. All the other requests made by Petitioner go far beyond the terms of the original stipulation of the parties and are denied.

Respondent Schaper's request for attorney fees and costs is denied without prejudice. Any motion for the same will only be entertained after the filing of a noticed motion duly served on all interested parties.